



File No.: EXP202213122

RESOLUTION No.: R/00352/2023

Considering the complaint filed on October 26, 2022, before this Agency by Ms. A.A.A. against GOOGLE LLC for not having properly addressed her request to exercise the rights established in the GDPR.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Ms. A.A.A. (hereinafter, the complaining party) exercised the right to erasure before GOOGLE LLC (hereinafter, the responding party), indicating that personal data is published in the search engine without her consent and requested that they not be associated in the search results of several URLs. "The complainant is not a person holding any public office or with public projection. The links for which de-indexing is requested refer to (...), eleven years ago. The information is excessive and outdated, especially (...). Information whose permanence, due to its characteristics, causes serious harm to the complainant in her family and social environment (...)."

The responding party replied that "We will remove those URLs from the search results for queries related to your name. We will remove them from your country and from other European versions of Google Search. This process may take a few hours," and regarding URL ***URL.1 that "Once a balance has been struck between the interests and rights related to the content in question, including factors such as the continued publication of the content by a public body, Google has decided not to block it."

Dissatisfied with the response received, the representative of the complaining party sent a new email to the responding party reiterating that, "Regarding your decision not to proceed with the de-indexing of URL (...), the complaining party is a private individual, without any public projection, and that the published information is outdated."

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of claims filed before the AEPD, consisting of forwarding them to the Data Protection Delegates designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the responding entity for analysis and response to the complaining party and this Agency within one month.

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The responding party has indicated that "(...) it has re-examined the request of Ms. A.A.A. and, in view of its content, considers that the URL in question refers to information that seems to present public relevance and interest. In particular, the disputed search result refers to a publication on the website (...), which was published in accordance with the applicable regulations on the official digital headquarters of the referred (...)."

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow understanding the claims of the complaining party to be satisfied. Consequently, on January 26, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing and informed the parties that the maximum period to resolve this procedure, which is understood to have commenced by virtue of said admission agreement, will be six months.

The aforementioned agreement granted the responding entity a hearing period, so that within ten working days it could present any allegations it deemed appropriate. This entity indicated, in summary,

that “(...) it has re-examined the content of the webpage to which the disputed search result refers and has reconsidered its initial decision. Consequently, Google LLC has proceeded to block the request made by Ms. A.A.A..”

FOURTH: After examining the allegations presented by the responding party, they were forwarded to the complaining party, so that, within fifteen working days, she could formulate any allegations she deemed appropriate, having responded that Google LLC has proceeded to remove all the links whose removal was requested.

“That notwithstanding the above, it is currently verified that in the search results derived from entering the name “A.A.A.” in the Google search engine, there is still a link to the information whose removal was initially requested, but was not included in the document submitted in the administrative proceedings that follows:

***URL.2

(...) To this end, on March 1, 2023, its removal was requested through the procedure for managing requests for the right to be forgotten, pending resolution, (...)”

FIFTH: After granting the hearing to the responsible party, it indicates that, as already stated in its written allegations, it proceeded to address the requested right.

“Now, in a document dated March 4, 2023, Ms. A.A.A. includes a new search result regarding which, unless we are mistaken, she has never previously exercised a right of erasure prior to the initiation of this procedure. As stated in the documents provided in her writing, Ms. A.A.A. requested Google LLC to delete this last search result for the first and only time on March 1, 2023.

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Notwithstanding that the search result that Ms. A.A.A. transcribes in her writing cannot be the subject of the procedure, having requested its removal after the initiation of the same, Google LLC has re-examined the content of the webpage to which the now disputed search result refers, and has proceeded with the blocking requested by Ms. A.A.A. in her writing of March 4, 2023.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, prior to the admission for processing of the complaint that gives rise to this procedure, it was forwarded to the responsible entity for analysis, requiring a response to this Agency within one month and proving that the necessary response had been provided to the complainant, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article

64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article. In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld.”

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The clarification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, given that its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to commence a procedure based on any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the current procedure, the guarantees and rights of the claimant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Article 12 of the GDPR and Article 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

FOURTH: The right to be forgotten is contemplated in Article 17 of the GDPR, as well as in Article 93 of the LOPDGDD, regarding the right to be forgotten in Internet searches, which states, in its paragraph 1, the following:

“1. Everyone has the right for search engines on the Internet to remove from the lists of results obtained from a search conducted based on their name the published links that contained information relating to that person when they are inadequate, inaccurate, irrelevant, outdated, or excessive, or have become such due to the passage of time, taking into account the purposes for which they were collected or processed, the time elapsed, and the nature and public interest of the information.”

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Similarly, the same procedure shall be followed when the personal circumstances invoked by the affected party demonstrate the prevalence of their rights over the maintenance of links by the Internet search service.

This right shall persist even when the retention of the information published on the website to which the link directs is lawful and it has not been previously or simultaneously deleted by the same.

As stated in the Supreme Court Judgment of January 11, 2019, "This fundamental right to be forgotten is not an unlimited right - constitutional doctrine holds - because, although the Constitution does not expressly establish specific limits, based on the principle of unity of the Constitution, the limits derived from respect for other fundamental rights apply, among which the freedom of information proclaimed by Article 20 of the Constitution is of particular relevance."

Regarding the nature of the search engine as a data controller, it should be noted that a search engine is a tool that facilitates Internet users' access to certain web pages. To do this, the tool accesses a list of previously indexed links and offers the user a list of web addresses that refer to pages containing the words selected by the user.

The Judgment of the Court of the European Union of May 13, 2014 states the following:

Paragraph 28: "By exploring the Internet in an automated, constant, and systematic manner in search of the information published there, the operator of a search engine collects such data, which it extracts, records, and subsequently organizes within the framework of its indexing programs, retains on its servers, and, where appropriate, communicates and facilitates access to its users in the form of search result lists. Since these operations are explicitly and unconditionally covered by Article 2(b) of Directive 95/46, they must be classified as processing in the sense of that provision, regardless of whether the search engine operator also performs the same operations with other types of information and does not distinguish between these and personal data."

Paragraph 33: "However, the search engine operator is the one who determines the purposes and means of this activity and, thus, of the processing of personal data that it carries out within this framework and, consequently, must be considered responsible for such processing under the aforementioned Article 2(d)."

Paragraph 35: "On this particular point, it should be noted that the processing of personal data carried out within the framework of a search engine's activity is distinct from that carried out by website publishers, which consists of displaying such data on a webpage, and is added to it."

Consequently, the Court of Justice considers that the search engine operator is responsible for the processing of data as it determines the purposes and means of its activity.

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Regarding the possibility of exercising the right to erasure before the Internet search engine without resorting to the website operator, the Court of Justice of the European Union, in its Judgment of May 13, 2014, (case C-131/12), stated:

"(...) the processing of data (...) carried out by the operator of a search engine can significantly affect the fundamental rights to respect for private life and to the protection of personal data when the search carried out using that search engine is based on the name of a natural person, since such processing allows any internet user to obtain, through the list of results, a structured view of the information relating to that person which may be found on the Internet, potentially affecting a multitude of aspects of their private life, which, without that search engine, would not have been interconnected or would have been very difficult to interconnect, thus allowing the establishment of a more or less detailed profile of the person in question. Furthermore, the effect of the interference with the rights of the data subject is multiplied due to the significant role that the Internet and search engines play in modern society, which gives the information contained in such a list of results a ubiquitous character (see, in this regard, the judgment in eDate Advertising and others, C-509/09 and C-161/10, EU:C2011:685, paragraph 45)."

"The Court of Justice maintains that the removal of links from the list of results based on the name of the natural person affected by the dissemination of the news could have repercussions on the legitimate interest of internet users potentially interested in accessing the information in question, so it is necessary to seek a fair balance between this interest and the fundamental right of the affected

person in accordance with Articles 7 and 8 of the Charter of Fundamental Rights of the European Union.”

“(…) to respect the rights established by these provisions, provided that the requirements set out therein are genuinely met, the operator of a search engine is obliged to remove from the list of results obtained following a search carried out based on the name of a person links to web pages published by third parties that contain information relating to that person, even in the event that this name or this information is not removed prior to or simultaneously from these web pages, and, where applicable, even if the publication on such pages is lawful in itself.”

Consequently, the processing of personal data carried out by the operator of a search engine allows for a “name” to yield a list of results that provide information about a person that may affect their private sphere. Once the data subject has submitted their request for the erasure of their personal data to the search engine, it must examine it and proceed, if applicable, to the removal of the specific links from the list of results, without the need to first or simultaneously approach the website operator.

It also follows from the above that the conflicting rights and interests must be weighed in each specific case in order to determine which right prevails.

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For the purpose of carrying out the balancing task, it should be recalled the Judgment of the Supreme Court, number 545/2015, of October 15, 2015, which states that “the so-called ‘right to digital forgetfulness’, which is a specification in this field of the rights derived from the quality requirements of personal data processing, does not protect the idea that each individual can construct a past to their liking, forcing web page editors or search engine managers to delete the processing of their personal data when associated with facts that are not considered positive. It also does not justify that those who publicly expose themselves can demand that a curriculum be constructed to their taste, controlling the narrative about themselves, removing negative information from the Internet, ‘positioning’ the results of Internet searches at their whim, so that the most favorable ones occupy the top positions. If this thesis were accepted, it would severely disrupt the information mechanisms necessary for citizens to make their decisions in the democratic life of a country.”

It is also relevant the doctrine collected in the judgment of the National Court, of June 21, 2019, which specifies, in its fifth legal basis, the following, in relation to the information related to the professional life of the interested party:

“(…) General doctrine that is also developed in sections 81, 93, and 97 of the repeated Judgment of the CJEU - of May 13, 2014 - indicating that, notwithstanding that prevalence, a fair balance must be sought between the legitimate interest of internet users in accessing information in a search concerning the name of a person and the fundamental rights of that person, and it may result that, for specific reasons such as the role played by the aforementioned interested party in public life, the interference in their fundamental rights is justified by the preponderant interest of the public in having, as a result of this inclusion, access to the information in question.

In the case at hand, entering into the balancing of the rights and interests at stake, it must first be taken into account that it refers to the professional life of the claimant, a businessman, and not to their personal life, as this is very relevant to modulate the intensity that the protection of the right regulated in art. 18.4 of the Constitution deserves, as this Chamber has pointed out in the Judgments of May 11, 2017 - appeal no. 30/2016 - and June 6, 2017 - appeal no. 1.797/2015.”

In this regard, it is appropriate to refer to the guidelines of the Working Group of the 29th on the right to be forgotten (Guidelines on the implementation of the Court of Justice of the European Union Judgment on “Google Spain and inc v. AEPD and B.B.B.” C-131/12), which states: “There is a basic difference between a person's private life and their public or professional life. The availability of information in search results becomes more acceptable the less information it reveals about a person's private life (...) information is more likely to be relevant if it relates to the professional life of the interested party, but it will depend on the nature of the interested party's work and the legitimate

interest of the public in accessing that information through a search by their name (...).”

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When the information refers to private individuals, the Constitutional Court has declared that “even when the news concerning the subject at hand pertains to public interest, not all of its content is protected by the freedom of information—in this case, freedom of expression—such that the transmission of those facts that, within the news, affect the honor or privacy of the concerned individual and are revealed as ‘manifestly unnecessary and irrelevant to the public interest of the information’ may be deemed disproportionate” (SSTC 105/1990, of June 6, FJ 8, and 121/2002, of May 20, FJ 5). Furthermore, in order to assess the public relevance of the matter, it must be analyzed whether the published information remains of general interest due to the time elapsed. Regarding this issue, the National Court stated in its ruling dated November 8, 2017, the following: “moreover, unlike the first link, an excessive amount of time has not passed between the date on which the cancellation request was made to the search engine and the date of the news publication. Indeed, since the date the news was published (August 2011) and the date on which the right of cancellation was exercised (July 2015), not even four years have passed, and the fact that it is a record, given the circumstances of the case as previously stated, does not affect this conclusion.”

In this regard, the aforementioned Judgment of the Court of Justice of the European Union states in paragraph 93 the following: “even an initially lawful processing of accurate data may, over time, become incompatible with that Directive when these data are no longer necessary in relation to the purposes for which they were collected or processed. This is particularly the case when they are inadequate, irrelevant, or no longer pertinent or are excessive in relation to these purposes and the time elapsed.”

The Judgment of the Constitutional Court 89/2022, of June 29, 2022, upholds the amparo appeal filed by the appellant and, by virtue of this, declares that their right to the protection of personal data has been violated, restoring them in their right and, to this end, declares the nullity of the judgment of the Third Section of the Administrative Litigation Chamber of the Supreme Court, dated September 17, 2020, and the judgment of the First Section of the Administrative Litigation Chamber of the National Court, dated December 14, 2018.

Said STC 89/2022 establishes in Legal Basis 5 “Resolution of the second complaint for violation of the fundamental right to be forgotten

(...) the appellant alleges the violation of the right to be forgotten due to infringement of the criteria for weighing the public relevance of what was disseminated and the time elapsed. The appellant indicates that these criteria were established in the STJUE Google Spain and in the STC 58/2018, of June 4, and that the Supreme Court would have applied them incorrectly.

(...) A) The criterion of ‘the public relevance of what was disseminated’.

(...) It should be noted that the concept of ‘matters of public relevance’ is a concept that this court has been considering as a prerequisite for assessing the preponderant value of the public freedoms of information and expression under art. 20 CE, against the right to honor and personal and family privacy.

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of art. 18.1 CE (among others, SSTC 49/2001, of February 26, FJ 6, and 216/2013, of December 29, FJ 5). This criterion is also used, as the appellant indicates, in STC 58/2018, where we discussed the “right to freely communicate truthful information [art. 20.1 d) CE], which protects the dissemination of facts that deserve to be considered newsworthy as they refer to matters of public relevance that are of general interest due to the subjects they address, or the individuals involved” (FJ 6).

In the present case, "the public relevance of what has been disseminated" is an element that has been taken into consideration, but not to determine the predominant value of the constitutional right to freedom of expression or the freedom of information of the person who published information regarding the appellant – a person whose identity is also unknown – or of the portal in which user opinions are inserted – a portal that is also based in the United States – but rather to justify that there is a predominant public interest in accessing the information.

Thus, the Supreme Court explains that certain professional aspects of the appellant present a public interest that aligns with the interest of consumers and users in knowing and accessing publications that contain evaluations and opinions about professionals through the search engine.

To determine whether there is such a superior public interest, it is appropriate to analogously apply the criteria already developed in our jurisprudence, in which we have determined that the existence of such interest may arise because the affected party is a public figure or has acquired public notoriety, and in this second case, public notoriety may have been achieved through the professional activity they engage in, or by habitually disseminating facts and events from their private life, or they may have acquired circumstantial prominence by being involved in events that enjoy that public relevance (STC 99/2002, May 6, FJ 7, and 23/2010, April 27, FJ 5). It is also possible that even if the affected party is not a public figure nor has acquired public notoriety, there may exist a public interest in accessing such information if it pertains to a matter of general interest (STC 216/2013, December 19, FJ 6):

b) (...) Once the public status of the appellant is ruled out, it must be determined whether there is interest in accessing the information based on the subject matter in question. The fact that the information relates to the current professional life of the interested party is an element to consider, as highlighted by Google in its submissions, and as noted in the guidelines on the implementation of the CJEU Google Spain, from the Article 29 Data Protection Working Party, which establish that "the information is more likely to be relevant if it relates to the current professional life of the interested party." However, this fact is not decisive because, as those same guidelines indicate, "it will largely depend on the nature of the work itself and the public's interest in having access to that information through a search by their name" (commentary on criterion 5, page 17).

It is necessary to determine, first and foremost, whether access to what has been published contributes to the formation of a free public opinion (STC 49/2001, February 26, FJ 6), because what deserves special constitutional protection is the dissemination of ideas that contribute to that end and that facilitate the citizen's ability to freely form their opinions and

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to participate reasonably in public affairs (STC 23/2010, of April 27, FJ 3). If such interest exists, in any case, it would only extend to that communication whose knowledge is necessary for citizens' real participation in collective life and that is not formally degrading (STC 110/2000, of May 5, FJ 8).

(i) (...)

(ii) Regarding the work carried out, it cannot be considered that real estate promotion constitutes a professional activity that grants public relevance to any publication related to any professional in that sector. (...)

(iii) Finally, it should be noted that the application of the criterion of public relevance must be more restrictive when it comes to access through a link in a search engine, insofar as, even if the link obtained after a search for the name and surname of that person is removed, access can always be made through the webpage where the original information is published, or even through the search engine using search criteria other than the name and surname of the affected person.

In this regard, the Court of Justice of the European Union has already noted that "the result of the balancing of conflicting interests that must be carried out [...] may differ depending on whether it concerns processing carried out by a search engine manager or by the publisher of this webpage, given that, on the one hand, the legitimate interests justifying these processes may be different, and, on the other hand, the consequences of these processes on the interested party, and in particular on

their private life, are not necessarily the same."

"In effect, to the extent that the inclusion, in the list of results obtained after a search carried out based on a person's name, of a webpage and the information contained therein relating to this person significantly facilitates the accessibility of that information to any internet user who conducts a search about the interested party and can play a decisive role in the dissemination of this information, it may constitute a greater interference in the fundamental right to respect for the private life of the interested party than the publication by the publisher of this webpage" (CJEU Google Spain, § 86 and 87).

All these circumstances, taken together, lead us to consider that in the present case it cannot be concluded that access by this means to mere opinions and personal comments about the professional activity of private individuals, who are not public figures nor have gained notoriety through such professional activity, contributes per se to the formation of a free public opinion.

B) The time factor.

(...) Regarding the publications referred to by the judicial bodies, it is true that, from a strictly temporal perspective, they can be considered "current" on the date when Mr. X.X.X. submitted his cancellation request to the

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Google company. However, the problem lies in the fact that they are not relevant to support the current nature of the opinions published by the user on the complaint portals. (...)

But none of these comments make any reference to the information contained in the news that has been taken into account by the judicial resolutions to support the current nature of the published opinions, which refer to a criminal judicial procedure in which Mr. X.X.X. is allegedly involved. While such news about that criminal procedure may be current, and consequently may justify a higher public interest in accessing it, the current nature does not transfer to the opinions expressed about the appellant on the complaint portals that do not pertain to those criminal proceedings.

Therefore, it can be concluded that the elements considered by the judgments challenged here do not reveal the existence of a predominant public interest in accessing such information, to the extent of allowing the sacrifice of the appellant's right to be forgotten regarding the Google search engine. (...)

FIFTH: In the present case, according to the documentation in the proceedings, the claimant requested the deletion of her personal data from the defendant regarding the URL subject to the complaint, with the purpose of ensuring that her personal data is not linked to the search results based on her name, which was denied for valid reasons, considering that the information appears to present relevance and public interest, as it was published on a website of a Court.

During the processing of the present procedure, the defendant states that it has re-examined the content of the website to which the disputed search result refers and has reconsidered its initial decision, proceeding accordingly with the blocking requested by the claimant.

Therefore, with the new measures adopted by the defendant, the rights of the affected party are duly restored and, consequently, it is appropriate to uphold the present complaint for formal reasons, as the request has been addressed extemporaneously, without the need for additional actions.

Regarding the new URL that the claimant included during the processing of the present procedure, it should be noted that the complaint for failure to address the rights occurs when, once the right has been validly exercised, it is not duly addressed by the defendant. In the present case, these requirements are not met, so it is appropriate to dismiss her complaint. Nevertheless, the defendant, being aware of the claimant's request, has proceeded to address the requested right.

In view of the cited provisions and others of general application,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the complaint filed by Ms. A.A.A. against GOOGLE LLC regarding the URL

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***URL.1

However, a new certification by said entity is not appropriate, as the response was issued extemporaneously, without the need for additional actions by the responsible party.

SECOND: TO DISMISS the complaint filed by Ms. A.A.A. against GOOGLE LLC regarding the URL

***URL.2

THIRD: TO NOTIFY this resolution to Ms. A.A.A. and to GOOGLE LLC.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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